

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent and Third-Party Complainant*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.; SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE LTD.; AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
Third-Party Respondents.

DOCKET NO. 24-16

Served: February 18, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

**ORDER DENYING RESPONDENT’S EMERGENCY MOTION FOR ENLARGEMENT OF TIME TO FILE
RESPONSE TO COMPLAINANT’S MOTION TO COMPEL**

On Sunday, February 15, 2026, Respondent COSCO Shipping Lines Co. Ltd. (“COSCO”) moved to enlarge the time to respond to Complainant Samsung Electronics America, Inc.’s (“SEA”) Motion to Compel (“MTC”), which was filed on February 11, 2026. COSCO further moved for the time for SEA to respond to COSCO’s motion to be reduced to filing a response by 5:00 p.m. February 17, 2026, the first business day following a federal holiday. Respondent’s Emergency Motion for Enlargement at 4. In addition, COSCO seeks an order granting the requested relief before the end of the day on February 18, 2026, the day it’s response to the MTC is currently due. *Id.* As good cause for the motion to enlarge, COSCO states that due to the Chinese New Year celebration, it cannot secure a declaration from its Chinese counsel at the Zhong Lun Law Firm “regarding review of documents and the requirements of related Chinese laws and regulations that are impacting document production [of] COSCO documents exclusively located in China.” *Id.* at 2. Exhibit A attached to COSCO’s motion, includes a declaration by an attorney for the Chinese law firm that the Chinese New Year begins on February 15, 2026, and ends on February 23, 2026, (which I note is a Monday), and that he was requested to and will provide a further declaration “no later than February 27, 2026” (which I note is a Friday). Exhibit A at 1-2.

On Monday, February 16, 2026, a federal holiday in the United States, SEA responded to COSCO's motion. SEA opposes COSCO's motion for enlargement of time, stating that the motion to compel was filed on February 11, 2026, giving COSCO ample time to obtain a declaration from its Chinese counsel prior to the start of the Chinese New Year. SEA further contends that COSCO has stated since at least November 25, 2025, that it was working with Chinese counsel "to address generic Chinese law limitations" and now, months later, "Cosco's attempt to characterize the holiday as an unavoidable impediment is therefore unavailing." Opposition to Respondent's Motion for Extension of Time at 4.

Because SEA responded to Respondent's Emergency Motion for Enlargement on Monday February 16, 2026, despite the Federal Maritime Commission being closed in observance of the United States federal holiday, COSCO's motion to reduce the period for SEA to respond is **DENIED AS MOOT**. As further explained below, good cause to enlarge the time for COSCO to respond to SEA's MTC is not established, and the motion is **DENIED**. However, due to the federal holiday, COSCO's response to the motion to compel is extended to February 19, 2026.

On February 11, 2026, SEA filed a motion to compel after conferring with COSCO on February 5, 2026. *See* Dkt. 95, MTC; Dkt. 94, Respondent's Status Report ("RSR"), Exhibit B. Both the RSR filed on February 9, 2026, and the MTC filed two days later, reference a joint motion to amend the schedule filed on November 25, 2025. RSR at 2; MTC at 5. As a result of the two filings, I conducted a video status conference with representatives of all parties on February 13, 2026. As I explained at the conference, I was unaware that a joint motion to amend the schedule was filed in November 2025. After telling the parties that going forward, any motion to enlarge or amend a schedule should be acted on by me within ten days of receipt of the filing, barring unusual circumstances, I instructed the parties that in the future they should send an email to my attention at judges@fmc.gov if they do not receive an order addressing such a motion within ten days. I also noted that the parties had conducted discovery as though I had adopted their proposed amendments, and I was concerned that they did so for two months absent an order allowing it. Moreover, COSCO has not met the date the parties proposed on November 25, 2026, to complete production of documents. Dkt. 88, at 5 (January 16, 2026).

Turning to COSCO's emergency motion to enlarge the time to file a response to SEA's motion to compel, COSCO asserts that it needs over a week additional time to respond to the motion because it cannot obtain an affidavit from its Chinese counsel until after the New Year celebration (and apparently another several days after it concludes). COSCO states:

On February 13, 2026, the Presiding Officer held the scheduled hearing. In connection with the discussion of SEA's Motion to Compel, counsel for COSCO understood the Presiding Officer to request that COSCO submit an affidavit or declaration from a qualified Chinese attorney addressing the issue under Chinese law that affect the production of documents from China.

Respondent's Emergency Motion for Enlargement at 2.

To prevent any further misunderstanding, no affidavit or declaration was requested by me, and none is necessary. Rather, I asked COSCO's US counsel to inform its Chinese counsel

that production of the documents was urgent, that redacting corporate email addresses and names of those making decisions who SEA may want to depose is not considered personally identifiable information under US law and cannot be redacted, and that Chinese counsel should be provided with the United States District of Columbia Court of Appeals opinion in *MSC Mediterranean Shipping Company S.A. v. Federal Maritime Commission and United States of America and MCS Industries, Inc.*, 141 F.4th 222 (D.C. Cir. 2025).

COSCO maintained at the conference that compared to the documents it has gathered from the United States and Korea, the documents in the custody and control of COSCO's Chinese facilities is much smaller. It also contended that production of documents from China was "imminent." In its response to the MTC, COSCO should address those statements and what that means for its production of ESI and documents. Further, if COSCO is producing such heavily redacted records as Exhibit 1 to SEA's Opposition to Respondent's Motion for Extension of Time, COSCO should address how those records could be considered responsive to SEA's request for production of documents.

It is concerning that this issue is being raised well after document production was to be completed under the existing scheduling order (*see* Dkt. 76, Order on Fourth Joint Motion for Extension of Time, at 2, setting October 17, 2025, for completion of document production and noticing of fact depositions), and a month after the date proposed in the November 25, 2025, motion to amend the schedule. A declaration from COSCO's Chinese counsel could have been obtained if deemed necessary by COSCO's US counsel after the meet and confer on February 5, 2026, but would have been more appropriate at least a week before the October 17, 2025, deadline in the current scheduling order, which is when the parties should have requested the extension. While I acknowledge the importance of the New Year holiday in China, extending COSCO's time to respond to SEA's MTC will delay this proceeding further. Rather than focusing on providing an affidavit regarding the limitations of Chinese law, COSCO should discuss US case law where discovery has been delayed or impeded because of the "possibility" of violating the laws of a foreign jurisdiction where the records may be domiciled and how that is distinguishable, if at all, from this proceeding. *See, MSC Mediterranean v. FMC*, supra; 46 C.F.R. § 502.150(d)

While SEA also raised the issue of an incomplete production of documents from COSCO in Korea, COSCO maintains that it completed that production on February 11, 2026. Unless SEA raises some deficiency in that production in a separate motion, it will likely be considered moot and COSCO need not address that further in its response to the MTC.

Accordingly, it is **ORDERED** that Respondent's Emergency Motion for Enlargement is **DENIED**. It is **FURTHER ORDERED** that COSCO's motion that the time for SEA to respond to COSCO's motion be reduced is **DENIED AS MOOT**. It is **FURTHER ORDERED** that COSCO respond to the MTC by February 19, 2026.

As one further point of clarification, I did not direct COSCO at the conference to file a motion to compel. Respondent's Emergency Motion for Enlargement at 4. Rather, I instructed the parties to try to resolve these issues between themselves, and if they are unable to do so, COSCO should file its motion to compel responses to interrogatories that it raised in the RSR, no later than February 20, 2026. Setting this deadline for filing a motion to compel is to avoid

further delay in this matter related to discovery. COSCO identified what it contends is an issue with SEA's responses to interrogatories in the RSR it filed on February 9, 2026. As I stated at the conference and reiterate here, the better course of action is for the parties to resolve their discovery disputes and move forward to depositions.



Linda S. Harris Crovella
Administrative Law Judge